

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-12

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC.,

v.

MSC MEDITERRANEAN SHIPPING COMPANY SA

JOINT MOTION TO EXTEND DEADLINES

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. ("Complainant" or "BBBY"), and Respondent MSC Mediterranean Shipping Company SA ("Respondent" or "MSC" and, collectively with BBBY, the "Parties"), by their respective undersigned counsel, hereby jointly submit this Joint Motion to Extend Deadlines ("Motion") respectfully requesting a 45-day extension of the remaining deadlines set forth in the Presiding Officer's August 8, 2024 First Amended Scheduling Order:

I. THE CURRENT SCHEDULE

1. On August 8, 2024, the Presiding Officer entered a First Amended Scheduling Order with the following deadlines relevant to this Motion:

September 30, 2024	Substantial completion of documents and ESI pursuant to initial RFPs
October 30, 2024	Joint status report due describing status of discovery
December 2, 2024	Complete depositions of fact witnesses
December 2, 2024	Last day to serve interrogatories, requests for admission, and RFPs
December 23, 2024	Disclosure of initial expert reports, if any
January 22, 2025	Disclosure of rebuttal expert reports, if any

January 27, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
February 20, 2025	Complete expert depositions
February 20, 2025	Close of discovery
March 17, 2025	Complainant's initial brief, proposed findings of fact, and appendix
April 14, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
April 28, 2025	Complainant's reply brief and responses to proposed findings of fact

II. GOOD CAUSE EXISTS TO EXTEND THE CURRENT DEADLINES

A. Technical Delays in Processing Discovery Materials Necessitate This Extension

2. The Parties have been proactive regarding discovery in this matter and began negotiating their ESI Protocol (which has been filed in the matter), discussing custodians, and collecting documents while MSC's Partial Motion to Dismiss was still pending, rather than waiting for the filing of an answer to begin working on discovery matters. During that time, the Parties also negotiated and prepared the Protective Order filed in this matter.

3. As a part of its document and data collection process, and due in part to BBBY's bankruptcy and the winding down of its operations, including its information technology infrastructure, BBBY has collected more than 8.35 terabytes of data consisting of nearly 11 million emails, attachments, and documents from more than 20 custodians, as well as network share drives and other sources of data. Based upon the search terms initially negotiated in the Parties' ESI Protocol, Complainant's initial searches for potentially responsive data from such custodians has returned close to one million emails and attachments as well as a substantial additional set of non-email documents from BBBY's files.

4. Complainant has worked closely with its e-discovery vendor to expedite this process, but technical delays experienced by Complainant's e-discovery vendor in extracting

certain native files, which took a number of weeks, resulted in documents only becoming fully available to counsel for Complainant on July 11, 2024.

5. Complainant made an initial production of documents to Respondent on July 9, 2024, consisting of 11,702 pages, and a second production of documents on July 18, 2024, consisting of an additional 141,777 pages. Respondents made an initial production of documents to Complainant on June 17, 2024 consisting of 26,199 pages, a second production on June 21, 2024, consisting of 22,521 pages, and a third production on September 17, 2024, consisting of a further 61,394 pages.

6. At the beginning of August 2024, Complainant began to migrate its data from its prior e-discovery vendor to a new vendor due to Complainant's status in bankruptcy and the use of Complainant's e-discovery vendors to host large volumes of data that, but for the bankruptcy, typically would be maintained in-house by the company. At that time, Complainant's e-discovery vendors believed that the transfer process would take approximately one week. However, due to unforeseen data migration issues involved in the verification, transport, and transfer of materials, including errors in data failing to load, finalization of processing data within the database, and uninstallation of proprietary software/analytics data from the prior e-discovery vendor's systems, this process has taken much longer than originally anticipated, and has necessitated a pause in Complainant's ongoing document productions.

7. Complainant has been able to continue reviewing certain documents in the interim, and has substantial additional document productions to be made after the data migration between its e-discovery vendors is complete. Unfortunately, however, that migration is still ongoing, which has slowed the pace of further review.

8. The Parties have been diligent in managing and producing documents. As previously reported, the Parties have conferred to clarify and narrow discovery requests and search terms in order to achieve focused responses and productions. The Parties have also endeavored to avoid “data dumps,” i.e., the production of documents that are not substantively responsive. These efforts have involved meaningful scrutiny during the review process and accordingly require a meaningful expenditure of time.

9. As a part of the ongoing review and rolling production process, Complainant and Respondent are working to evaluate and review the substantial amount of remaining documents that were captured by each Party’s ESI Protocol search terms, to isolate potentially overinclusive terms for further discussion, to remove non-responsive documents and data, and to continue to make rolling productions. These potentially responsive documents must be manually reviewed for responsiveness, confidentiality, and privilege before they are prepared for production, a task which will take a significant amount of time. Given the substantial volume of documents and the need for thorough review, an extension of time is necessary to ensure that both parties can complete their discovery obligations effectively.

10. Based upon Complainant’s best estimates of the availability of documents for review from its e-discovery vendors, and with the goal of seeking to prevent additional requests for extended time to complete discovery, the Parties therefore respectfully request that the Scheduling Order’s current deadlines be extended by 45 days.

B. The Large Number of Depositions to Be Taken Makes Completion under the Current Schedule Effectively Impossible.

11. The parties remain respectful of the deadlines set forth in the First Amended Scheduling Order, and to date have worked together diligently and collaboratively to structure (and agree on, to the extent possible at this early stage) both the overall scope and the particulars of fact

discovery in this action. However, the complexity and size of this matter, combined with the challenges presented by delays in document collection and processing, have made it clear to the Parties that they will not be able to complete written discovery within the present deadlines, and consequently would not be in a position to prepare for and take fact depositions based upon a full documentary record within the current schedule, and consequently would both be prejudiced in their ability to present their claims and defenses fully in their respective briefs or in any eventual hearing in this action.

12. The Parties will endeavor to prevent any further requests for additional time, but limited extensions may become necessary if, for example, issues arise related to the collection and production of documents located abroad or in the custody of non-parties, the need for significant additional Party depositions, or the need for testimony from non-parties (including Complainant's former employees and agents) or individuals located abroad (including employees and agents of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available, but in the interest of full transparency, the parties wish to note such possible issues for the Presiding Officer now. Indeed, in Complainant's currently pending action against other ocean carriers, *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, FMC Docket No. 23-02, where Complainant has raised Shipping Act claims similar to those in this action, the parties have already taken more than 20 fact depositions. In another of Complainant's pending actions, *Bed Bath & Beyond Inc. v. Yang Ming Marine Transport Corp.*, FMC Docket No. 23-10, the parties in that case currently anticipate approximately 10 fact depositions of current and former party employees.

13. Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

14. As shown above, the Parties anticipate a significantly higher volume of documents than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. (*See id.* Docs. 17–18.) Instead, this case is far more similar to *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, FMC Docket No. 23-02, in which discovery has been ongoing since June 2023 and in which the parties anticipate a total of approximately 32 depositions through October 2024.

III. THE RELIEF SOUGHT IS APPROPRIATE TO THE CIRCUMSTANCES

15. Given that the parties are still working diligently and collaboratively to review and produce documents from 79 custodians in preparation for what will likely be approximately 30 fact depositions, the Parties respectfully submit that an extension of the remaining deadlines in the August 8, 2024 First Amended Scheduling Order is necessary to allow the Parties a fair opportunity to produce documents, prepare for and take depositions of each other's relevant fact witnesses, and assess the need for any additional discovery, including non-party discovery. The Parties will endeavor to avoid asking the Presiding Officer for additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

16. The Parties therefore jointly request the following amended schedule (moved approximately 45 days from the original deadlines in the First Amended Scheduling Order, accounting for weekends and holidays):

November 14, 2024	Substantial completion of documents and ESI pursuant to initial RFPs
December 16, 2024	Joint status report due describing status of discovery
January 17, 2025	Complete depositions of fact witnesses
January 17, 2025	Last day to serve interrogatories, requests for admission, and RFPs
February 6, 2025	Disclosure of initial expert reports, if any
March 10, 2025	Disclosure of rebuttal expert reports, if any
March 13, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
April 8, 2025	Complete expert depositions
April 8, 2025	Close of discovery
May 1, 2025	Complainant's initial brief, proposed findings of fact, and appendix
May 29, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 12, 2025	Complainant's reply brief and responses to proposed findings of fact

17. Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this joint Motion.

18. WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: September 23, 2024

HUTH REYNOLDS LLP

/s/ Gregory A. Crapanzano II

Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
Gregory A. Crapanzano II
(917) 575-3440
gcrapanzano@huthreynolds.com
J. Lee Hill
(405) 826-3226
lhill@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

*Counsel for Complainant 20230930-
DKButterfly-1, Inc., f/k/a Bed Bath & Beyond
Inc.*

Respectfully submitted,

COZEN O'CONNOR

/s/ Christopher Raleigh

Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
Rachel Schwartz
1200 Nineteenth Street NW
Suite 300
Washington, DC 20036
Telephone: (202) 463-2507

*Counsel for Respondent MSC Mediterranean
Shipping Company SA*